



TFG GIFT POLICY

SOUTH AFRICA AND REST OF AFRICA



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1 INTRODUCTION

1.1 PURPOSE OF THE POLICY

The purpose of this Policy is to provide clear guidance regarding the receipt of gifts by the Foschini Group Limited (TFG) employees. In addition, the Policy should guide all TFG business partners, consultants, suppliers, vendors, service providers, agents or associates (collectively referred to as Business Contacts) regarding gift giving to TFG employees.

1.2 POLICY STATEMENT

As a starting point, TFG does not encourage the giving of gifts to its employees by Business Contacts. TFG understands and appreciates that its Business Contacts want to express their gratitude to TFG and in doing so, want to provide gifts to its employees. TFG however would rather welcome charitable donations instead of gifts. If a Business Contact insists on providing gifts to TFG staff, the contents of this Policy must be understood and complied with.

TFG employees are strongly encouraged to avoid situations which are or may be perceived as a conflict of interests (e.g., gift receiving).

1.3 SCOPE OF THE POLICY

1.3.1 This Policy applies to all TFG employees, including, but not limited to, directors, management, to all other permanent and variable employees, and also to independent contractors.

1.3.2 TFG's directors and management are responsible for:

- I. ensuring that employees are aware of the Policy;
- II. observing TFG's ethical obligations;
- III. taking steps to ensure compliance with the Policy;
- IV. setting an example in all matters pertaining to the Policy.

1.3.3 TFG also expects from its Business Contacts, with whom TFG contracts or does business, whether currently or in the future (including all employees of the Business Contacts), that they will comply with the principles of this Policy.



1.4 DEFINITIONS

1.4.1 Conflict of Interest (COI):

Refers to a situation in which an individual's personal interests' conflicts; or has the potential to conflict with the interests of their employer. These situations may arise from inappropriate giving or receiving of gifts in potentially compromising situations, or where it may be seen as bribery.

1.4.2 Code of Ethical Conduct:

Provides the guideline for acceptable standards of behaviour of employees and Business Contacts that TFG expects from these persons regarding decision-making and conduct.

1.4.3 Gift:

Refers generally to any item of material nature that has an intrinsic financial value but can also include money or its equivalent (such as gift vouchers), goods, services and other things of value, for example, meals, beverages (alcoholic and non-alcoholic), tickets to events, golf day sponsorships, sporting kit or equipment sponsorship, accommodation, loans, school fees, medical care expenses, trips* or tickets to cultural, entertainment, trade shows or sporting events and flights.

It is not possible to describe all of the gifts which may be received. This definition is therefore not exhaustive.

Notes:

- Cash gifts are not acceptable.
- Exceptions from the definition of gifts are supplier branded calendars, diaries, pens and notebooks.
- *Travel sponsored by suppliers must follow the process set out in section 2.2 below.

To obtain guidance on whether something constitutes a gift which must be disclosed, please email: svc_Assurance_COE@tfq.co.za

2. WHAT TO DO IF YOU RECEIVE A GIFT?

2.1 EMPLOYEE OBLIGATIONS

The following options are open to you:

2.1.1 Decline the gift and explain to the Business Contact that you would prefer a charitable donation instead.

2.1.2 Take the following steps:



- 2.1.3 Notify your Head of Division before accepting the gift.
- 2.1.4 Complete the Gift Disclosure using the following link:
<https://forms.office.com/Pages/ResponsePage.aspx?id=07X6wwlhS0yvLgU6AxFyV1TqxFXupYBMh5pmcvmnSjtUNVkyWU8wNTFCTEtBRFdKSlpCOU9DNjZBRSQIQCN0PWcu>
- 2.1.5 If the value of the gift is R1000 or more or where you receive more than 2 gifts in a calendar year, notify the Group Director for your division to obtain dispensation from the R1000 limit/2-gift limit prior to accepting the gift.
- 2.1.6 Only 2 (two) gifts may be received per employee, per calendar year (January to December) and the value of such gifts must not exceed R1000 (each) unless the Group Director dispensation has been received prior to acceptance.
- 2.1.7 Any gift over the value of R5 000 must be sign-off by the CEO or Chief Culture Officer, prior to being accepted.
- 2.1.8 In determining the value of the gift, the market value to the general public is considered the actual value of the gift.
- 2.1.9 Under no circumstances may an employee offer or accept any gift which may in any way compromise, potentially compromise or be perceived to compromise the independence of the employee or be in conflict with the duties owed by employees to TFG.
- 2.1.10 Prior approval by the relevant party (Head of Division, CEO or Chief Culture Officer) must be obtained before gifts are accepted.

2.2 EMPLOYEE OBLIGATIONS IN RESPECT OF SUPPLIER SPONSORED TRIPS

The following is required:

- 2.2.1 The traveller is required to advise TFG Travel and Fleet department of the following:
 - 2.2.1.1 Detail on the purpose of the trip;
 - 2.2.1.2 Trip details including destination and dates;
 - 2.2.1.3 Supplier name;



2.2.1.4 Value of the trip;

2.2.1.5 And the relevant division Managing Director must be copied in so that he/she is aware of the said sponsored trip.

2.2.2 *And must make necessary Gift disclosure under the relevant category.

3. BREACH OF THE POLICY

- 3.1 TFG's values and business principles are fundamental to the way it conducts business and it expects that all employees and Business Contacts, at every level, adhere to the highest standards of business ethics.
- 3.2 TFG reserves the right to take decisive action against any person or entity who does not comply with the spirit and principles of this Policy.
- 3.3 Employees who fail to comply with this Policy will face disciplinary action and may be dismissed, where appropriate.
- 3.4 For further information, refer to TFG's Disciplinary Policy.
- 3.5 Should our Business Contacts not uphold the values and principles contained in this Policy and TFG's Ethical Code of Conduct, TFG may terminate the business relationship with them.

4. MANAGER'S OBLIGATIONS

- 4.1 The collective responsibility for ensuring compliance with this Policy rests with management.
- 4.2 Management is responsible for communicating this Policy to all employees, for the implementation thereof, for ensuring that it is observed and for taking appropriate action when breaches are identified.
- 4.3 Managers are expected to provide leadership and to set an example to employees in so far as gifts are concerned.

5. SUPERCEDEENCE

This Policy replaces all previous TFG policies regarding the matters contained herein but should be read in conjunction with TFG's Code of Ethical Code of Conduct, Disciplinary Policy, Conflict of Interest Policy and Anti-Corruption Policy.

6. POLICY OWNERSHIP



This Policy is owned by the Chief & People Culture Officer and administered by Group Legal Compliance.

7. POLICY GOVERNANCE

Approved by	Date
Exco	13 November 2023
General Policy Forum	6 June 2024
Group Director	November 2024

Version date: May 2024
Next revision date: 31 May 2026
Administrator: Anna Mala



8. FREQUENTLY ASKED QUESTIONS

- Question: Do I need to disclose gifts that I have declined?
Answer: Yes.
- Question: Must I disclose all gifts or just those over the R1 000 threshold?
Answer: All gifts, of any value need to be disclosed.
- Question: Do I need to make a disclosure if a Business Contact takes me to lunch and pays?
Answer: Yes.
- Question: Why can't I just accept any gift from a Business Contact when it is given to me?
Answer: TFG prefers that Business Contacts express their gratitude to employees via charitable donations. The giving of gifts may directly or indirectly influence an employee's behaviour towards a certain Business Contact, e.g., it may result in the employee being more likely to use that Business Contact's services.
- Question: Why is there a R1000 limit?
Answer: The starting point is that TFG employees should not receive any gifts from Business Contacts. Where they do, R1000 is deemed a significant amount. Anything over R1000 is deemed to be inappropriate.
- Question: Why can I only accept 2 (two) gifts per calendar year?
Answer: We ask that TFG employees not accept any gifts or that they request charitable donations instead. Where they do accept a gift, we have limited it to two gifts, the value of which may not exceed R1000 (each). We want to develop a culture where employees recognise what is ethically required of them, without damaging supplier relationships.
- Question: Can a supplier pay for a buying trip, flights or trade shows?
Answer: These will be determined on a case-by-case basis, but the process set out in paragraph 2.2 above must be followed.
- Question: If I attend an event or conference paid for by a supplier, must I disclose it?
Answer: Yes, the Gift Disclosure must be used. There is a specific drop down for these types of events and conferences. Note, that if the event or conference includes travel and accommodation, you must follow the process set out in paragraph 2.2.
- Question: What if I am asked to attend a conference paid for by the supplier?
Answer: These will be determined on a case-by-case basis, but the process set out in paragraph 2.2 above must be followed.



- Question: What happens to the Gifts reported?
Answer: Gifts disclosed are reported monthly to the CFO, quarterly to the Governance Risk Committee which consists of the CFO and CEO and then monthly to each Group Director where Gifts have been disclosed in their division.
- Question: Where do I find the link to the Gift Disclosure?
Answer: On InSite under the self-service table and scroll down to Gift Disclosure.